

Freelance / Consulting Service Agreement

This Agreement is entered into on [Date] between:

Service Provider: [Your Name / Business Name], of [Address] ("Consultant")

Client: [Client Name / Company], of [Address] ("Client")

This is a structured starting point covering commonly-included freelance/consulting contract clauses — not legal advice. Have a lawyer review before use, and adapt to your jurisdiction.

1. Engagement

Consultant agrees to provide the services described in the Scope of Work dated [Date] (attached as Exhibit A and incorporated by reference).

2. Term

This Agreement begins on [Start Date] and continues until the deliverables in Exhibit A are complete, unless terminated earlier under Section 7.

3. Payment Terms

- Total fee: \$[Amount]
- Payment schedule: [e.g., "50% due upon signing, 50% due upon final delivery"]
- Accepted payment methods: [methods]
- **Late payment:** Invoices unpaid after [15/30] days accrue a late fee of [1.5–2%] per month.
Consultant may pause work on overdue accounts.

4. Intellectual Property

Ownership of final deliverables transfers to Client **upon receipt of payment in full**. Until that point, all work product remains the property of Consultant. Consultant retains the right to use general methods, tools, and non-confidential techniques developed during the engagement in future work.

5. Confidentiality

Both parties agree to keep confidential any non-public business, technical, or financial information disclosed during this engagement, and not to use it for any purpose outside this Agreement.

6. Independent Contractor Status

Consultant is an independent contractor, not an employee of Client. Consultant is responsible for their own taxes, insurance, and benefits. Nothing in this Agreement creates a partnership, joint venture, or employment relationship.

7. Termination

Either party may terminate this Agreement with [14/30] days written notice. Upon termination, Client will pay for all work completed to that point, calculated as [pro-rated fee / days worked at day rate].

8. Limitation of Liability

Consultant's total liability under this Agreement is limited to the total fees paid by Client. Neither party is liable for indirect, incidental, or consequential damages.

9. Dispute Resolution & Governing Law

This Agreement is governed by the laws of [State/Country]. Disputes will first be addressed through good-faith negotiation, then [mediation/arbitration/courts of Jurisdiction] if unresolved.

10. Entire Agreement

This Agreement, together with the attached Scope of Work, constitutes the entire agreement between the parties and supersedes any prior discussions.

Signed:

Client: _____ Date: _____

Consultant: _____ Date: _____

Exhibit A: Scope of Work (attach separately)